

23NWCV01134 23NWCV01134

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 23NWCV01134 Hearing Date: September 24, 2026 Dept: P

VAISA, SR., ET AL. v. DOLPHIN PLACE PARTNERS, LLC,
ET AL.

CASE NO.: 23NWCV01134

HEARING: 09/24/2026 @ 9:30 AM

#8

TENTATIVE ORDER

I.

Petitioner John Angelo Vaisa Sr.'s

Petitions for Approval of Compromise of Claim for Minor claimants Jacob Vaisa,
Jonathan Vaisa, and Jaylene Vaisa are GRANTED.

II.

Petitioner Erika Vaisa's Petitions for

Approval of Compromise of Claim for Minor claimants Jesus Oswaldo Martinez and
Stephanie Martinez are GRANTED.

Moving party to give notice.

There are five Petitions to Confirm Minors' Compromises

(Petitions) on calendar. Petitioner John Angelo Vaisa Sr. petitions for
approval of compromise of claim or action or disposition of proceeds for minor
claimants (1) Jonathan Vaisa, (2) Jaylene Vaisa, and (3) Jacob Vaisa.

Petitioner Erika Vaisa petitions for approval of compromise of claim or action

or disposition of proceeds for minor claimants (4) Jesus Oswaldo Martinez and (5) Stephanie Martinez.

Background

On April 12, 2023, Plaintiffs John Angelo Vaisa Sr.; Erika Vaisa; Jesus Oswaldo Martinez and Stephanie Martinez, minors, by and through their Guardian Ad Litem, Erika Vaisa; and Jaylene Angela Vaisa and Jonathan Joseph Vaisa, minors, by and through their Guardian Ad Litem, John Angelo Vaisa Sr. (collectively, Plaintiffs) filed this habitability action against Defendants Dolphin Place Partners, LLC; Dashmesh K Chopra; Ivon Monteon; Leticia Lopez; and Does 1 through 30 (collectively, Defendants). On June 2, 2023, Plaintiffs filed the operative first amended complaint (FAC). The FAC alleges that Plaintiffs, as tenants of 8434 Tweedy Lane #102, Downey, State of California, 90240 (Subject Premises) notified Defendants, the owners and managers of the Subject Premises, of mold in their unit, to which Defendants failed to take sufficient action. (FAC, ¶¶ 9-16.) The FAC asserts four causes of action: (1) breach of the implied warranty of habitability; (2) negligent training and supervision; (3) violation of Civil Code § 1942.4; and (4) violation of the Unfair Competition Law [Bus. & Prof. Code, § 17200].

On September 2, 2026, the Court granted in part and denied in part Plaintiffs' ex parte application to advance the Petitions. The Petition as to Jacob Vasia was advanced to September 8, 2026 and all other Petitioners were advanced to September 24, 2026.

On September 8, 2026, the Petition to Confirm Minor's Compromise as to Claimant Jacob Vasia first came on for hearing. The Court continued the hearing to today's date to be heard concurrently with the four other Petitions to allow Petitioner to file an omitted attachment.

On September 14, 2026, Petitioners John Angelo Vaisa Sr. and Erika Vaisa (collectively, Petitioners) filed four Notice of Erratas to the Petitions.

Legal Standard

A Petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability must conform with Code of Civil Procedure section 372 and Probate Code sections 2504

and 3600 et seq. (Cal. Rules of Court, rule 7.950.) Such a petition “must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise.” (Cal. Rules of Court, rule 7.950.) Moving papers should include the Petition of Guardian Ad Litem for Compromise of Disputed Claim of Minor or Person with Disability (Petition) on Form MC-350 and an Order Approving Compromise of Minor’s Claim (Order) Form MC-351.

Discussion

Petitioner John Angelo Vaisa Sr., as Guardian ad Litem and father of Claimants Jonathan Vaisa, age four; (2) Jaylene Vaisa, age seven; and (3) Jacob Vaisa and Petitioner Erika Vaisa, as Guardian ad Litem and mother of Claimants (4) Jesus Oswaldo Martinez, age seventeen; and (5) Stephanie Martinez, age fifteen move to approve the Petitions.

Based on the similarities between the Petitions, the Court will review them jointly in this ruling and note any relevant differences.

Petitioners provide Petitions on Form MC-350, Proposed Orders on Form MC-351, and Proposed Orders to Deposit Funds in Blocked Account on Form-355.

These Petitions are unopposed.

Allocation

Defendants will pay \$25,000 to each Claimant as part of a global settlement to all Plaintiffs in the amount of \$410,000. (Pet., ¶ 10; Attach., 10c.) As reflected in Attachment 10c, the agreement was agreed to verbally in a mediation. Petitioner contends that Defendants have not provided a long-form agreement. (Pet., ¶ 10c.)

Petitioners are each Plaintiffs in this action and will each receive \$142,500. (Pet., ¶ 11b(5).) Petitioners indicate that the reason for the allocation is so Petitioners can use their net recovery towards purchasing a family residence. (Attach., 11b(6).)

Each Claimants’ net recovery will be \$20,000. (Pet., ¶ 15.)

Medical Expenses

The Petitions do not claim any medical expenses. (Pet., ¶ 12a.) Petitioners represent that there are no statutory or contractual liens for payment of Claimants' medical expenses. (Pet., ¶ 12b(5).)

Attorney's Fees & Costs

The Petitions seek approval of \$5,000 in attorney's fees from each Claimant. (Pet., ¶ 13a; Attach., 13a.) This represents a 20% contingency fee that Plaintiffs' counsel charges for minors. (Golde Decl., ¶ 8.) Plaintiffs' counsel provides the retainer agreement, signed by Petitioners, in which Petitioners agreed to a 25% contingency fee. Thus, Plaintiffs' counsel voluntarily reduced the fee to 20% as to Claimant. (Golde Decl., ¶ 8; Attach., 17a.) The Petitions do not seek costs. (Pet., ¶ 13b.)

Based on the declaration of counsel and information provided in these Petitions, the Court finds this amount reasonable. (See Cal. Rules of Court, rule 7.955.)

Disposition of Settlement Funds

Petitioners request that the proceeds be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the Court. (Pet., ¶ 18b(2).) Petitioners include the requisite information in Attachment 18b(2) submitted for each Claimant on September 14, 2026.

Conclusion

The Court finds the Petitions are fair and reasonable as to each Claimant.

Petitioners John Angelo Vaisa Sr. and Erika Vaisa's petitions for approval of compromise of claim or action or disposition of proceeds for minor claimants (1) Jonathan Vaisa, (2) Jaylene Vaisa, (3) Jacob Vaisa, (4) Jesus Oswaldo Martinez, and (5) Stephanie Martinez are GRANTED.

The Court notes that the Proposed Orders reflect the hearing dates prior to the advancements or continuations. All five Petitions are heard and granted on this date.